

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC, *Complainant*

v.

ALPI U.S.A., Inc. and ALPI Air & Sea A/S,
Respondents.

DOCKET NO. 25-28

**RESPONDENTS'
OPPOSITION TO
COMPLAINANT'S MOTION
TO AMEND THE
COMPLAINT**

Respondents ALPI U.S.A., Inc. and ALPI Air & Sea A/S (collectively, “Respondents” or “ALPI”) submit this Opposition to the Motion to Amend the Complaint (the “Motion”) filed by Complainant Cool Living LLC. The Motion should be denied or, in the alternative, the proceeding should be stayed pending resolution of the parallel New York Action; and if leave is granted in any form, the Scheduling Order should be modified accordingly.

I. PRELIMINARY STATEMENT

The proposed Amended Complaint is not the modest “clarification” Complainant portrays. What Complainant actually seeks is to expand this FMC proceeding to mirror the parallel New York Supreme Court action—the same parties, the same commercial relationship, the same cargo-hold and invoicing dispute, the same subject matter, and the same alleged damages—and to relabel that dispute as a Shipping Act case. It is a substantial amendment, submitted nearly five months after the original Verified Complaint, three and a half months after Respondents’ Verified Answer raising twenty affirmative defenses, after entry of the Scheduling Order, after exchange of Initial Disclosures, after the parties engaged in CADRS mediation, after the parties served and responded to written discovery, and on the deadline the parties produced responsive documents.

Complainant also filed the Motion without first conferring with Respondents, as required by FMC Rule 71(a). Even setting aside that threshold defect, the amendment seeks to: (i) add Cool

Living Oy as a co-complainant, a separate Finnish entity whose motion to dismiss the parallel New York Supreme Court action for lack of personal jurisdiction was recently denied; (ii) inject expanded vicarious-liability and unlicensed-OTI theories targeting ALPI Logistics Inc., a non-party Complainant still does not join; (iii) add or expand allegations concerning cargo purportedly held in New Jersey, which raises domestic warehouse-lien issues distinct from the Denmark cargo previously at issue; (iv) recast damages allegations on behalf of two collective “Complainants”; and (v) replace the original Complaint’s improper civil-penalty demand under 46 U.S.C. § 41107(a) with a request for “additional amounts” under 46 U.S.C. § 41305(c).

These changes broaden the issues under FMC Rule 66, 46 C.F.R. § 502.66(a). Each is based on facts known or reasonably available to Complainant *before* it filed the original Complaint. The proposed amendment would require new discovery, revised defenses, additional motion practice, and substantial modification of the existing schedule. The Motion should be denied. In the alternative, this proceeding should be stayed pending resolution of the New York Action, as set forth in Section IV.E below.

II. PROCEDURAL AND FACTUAL BACKGROUND

Cool Living LLC filed its Verified Complaint on December 4, 2025, naming only itself as Complainant. Compl. ¶ 1. Although the original Complaint identified ALPI Logistics Inc. as having allegedly engaged in regulated NVOCC and OTI activities and as an alleged “undisclosed agent” of the ALPI NVOCCs, Compl. ¶¶ 17–20, and pleaded that ALPI “unilaterally chang[ed] the invoiced entity to Cool Living Oy,” Compl. ¶¶ 46–47, 71(b), 102(b), Complainant chose not to make Cool Living Oy a complainant or ALPI Logistics Inc. a respondent. On December 9, 2025, the Presiding Officer entered the Initial Order, requiring issuance of the initial decision within one year, completion of discovery within 150 days of service of the answer, and a joint status report with proposed schedule within fifteen days of service of the answer. Initial Order at

1–2. Respondents filed their Verified Answer on January 14, 2026, asserting twenty defenses, including standing/real-party-in-interest (Third Defense), contractual limitations and exclusion of damages (Fifth–Seventh Defenses), lawful exercise of contractual lien rights (Tenth Defense), improper venue (Seventeenth Defense), and prior pending action (Eighteenth Defense). The Scheduling Order then adopted a fixed schedule, with initial document production due April 30, 2026 and close of all discovery on June 13, 2026. The parties exchanged Initial Disclosures, engaged in CADRS mediation in February 2026, served and responded to written discovery, and produced responsive documents by the April 30 deadline.

The parallel New York Supreme Court action (Index No. 655504/2025), which was filed prior to this action by ALPI U.S.A., Inc. and ALPI Logistics Inc. to recover approximately \$89,025.97 in unpaid invoices for the same transportation, customs, and warehousing services at issue here, has been pending throughout. Respondents’ counsel in this proceeding also represent ALPI in the New York Action. Cool Living LLC has appeared in that action and asserted counterclaims arising out of the same cargo-hold and invoicing disputes at issue here. Cool Living Oy separately appeared and moved to dismiss for lack of personal jurisdiction; the New York court denied that motion.

On April 30, 2026—nearly five months after the Complaint and three and a half months after Respondents’ Answer—Complainant filed the Motion. The Motion contains no statement that Complainant conferred with Respondents before filing.

III. LEGAL STANDARD

Commission Rule 66 vests the Presiding Officer with discretion to permit or reject amendments, but expressly provides that “[n]o amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a). Where no specific Commission rule otherwise governs, the Federal

Rules of Civil Procedure may be followed to the extent consistent with sound administrative practice. 46 C.F.R. § 502.12. Federal Rule 15(a)(2) provides that leave to amend should be “freely give[n] when justice so requires,” but leave may be denied for undue delay, undue prejudice, bad faith, dilatory motive, or futility. *Foman v. Davis*, 371 U.S. 178, 182 (1962). When a scheduling order has been entered and discovery is underway, diligence and good-cause principles should also inform the Presiding Officer’s exercise of discretion. See Fed. R. Civ. P. 16(b)(4); *Branch Banking & Tr. Co. v. D.M.S.I., LLC*, 871 F.3d 751, 764 (9th Cir. 2017) (Rule 16(b)(4) “primarily considers the diligence of the party seeking the amendment”). Here, Complainant has not acted diligently, and Respondents would be prejudiced if the amendment is allowed without meaningful limits.

IV. ARGUMENT

A. Complainant Failed to Confer Before Filing.

As a threshold matter, the Motion appears procedurally defective. FMC Rule 71(a) requires parties to confer before filing non-dispositive motions and to state in the motion what attempt was made, or that the discussion occurred, and whether the motion is opposed. 46 C.F.R. § 502.71(a). A motion to amend is not a dispositive motion as defined in 46 C.F.R. § 502.69(g).

Complainant did not confer with Respondents before filing the Motion, and the Motion contains no conferral statement of any kind. *See generally* Mot. The defect is not merely technical. A conference would have allowed the parties to narrow the dispute, including whether Respondents would consent to certain limited corrections while opposing additions that materially broaden the case. The Motion should be denied on this basis alone, or at minimum the failure to confer should weigh against granting the requested amendment without conditions.

B. The Proposed Amendment Materially Broadens the Issues.

1. Adding Cool Living Oy as a Co-Complainant Is Not a Technical Correction.

Cool Living Oy is not Cool Living LLC. The original Complaint identifies the sole complainant as a Delaware limited liability company with its principal place of business in Barcelona, Spain. Compl. ¶ 1. Cool Living Oy is a separate Finnish entity, with its principal place of business in Turku, Finland, and distinct legal status, jurisdictional contacts, and potentially different contractual relationships with Respondents. Adding it is the procedural equivalent of joining a new party after a responsive pleading and after discovery has begun. The addition places at issue contractual privity, the real-party-in-interest determination (which entity owned the cargo, bore risk of loss, and suffered injury), allocation and segregation of damages between two entities, and Cool Living Oy's United States nexus under Shipping Act jurisdictional principles. In addition to motion practice, each will require new discovery into corporate structure, ownership, financial arrangements, and intercompany allocations, none of which was contemplated by the case Respondents answered.

The proposed amendment also creates a direct tension with Cool Living Oy's posture in the first-filed New York Action. There, Cool Living Oy moved to dismiss for lack of personal jurisdiction, arguing it could not be sued in New York on the parties' commercial dispute, and the New York court denied that motion. Now, with the New York court having rejected its no-jurisdiction position, Cool Living Oy seeks to appear in this forum as a co-complainant claiming Shipping Act injury arising from the same relationship and services. Respondents should not be forced to litigate against shifting and now-rejected positions in two forums without full discovery and a meaningful opportunity to respond. At minimum, the inconsistency raises serious prejudice and estoppel concerns that further militate against granting leave, including potential futility as to Cool Living Oy's claims.

2. The New Jersey Cargo-Hold Allegations Implicate Domestic Warehouse-Lien Issues Outside Shipping Act Jurisdiction.

The original Complaint focused primarily on cargo held in Denmark by ALPI Air & Sea A/S. Compl. ¶¶ 57-64. The proposed amendment expands the case to include cargo allegedly held in New Jersey, requiring discovery into what cargo is at issue, where it is located, which entity

holds it, and under what contractual or legal authority. As Respondents' Tenth Affirmative Defense reflects, ALPI's holds are based on contractual lien rights, including ALPI U.S.A.'s Service Terms § 14 (General Lien) and ALPI Logistics, Inc.'s Warehouse Receipt Terms § 8 (Lien Rights). To the extent any New Jersey cargo is held under warehouse-lien rights, the dispute concerns domestic warehouse and lien issues, not a distinct Shipping Act violation. Moreover, Complainant knew at the time it filed the original Complaint that cargo was located in New Jersey and subject to a lien, yet did not include those allegations. These allegations materially broaden the case and risk importing non-Shipping Act issues into this proceeding.

3. The Damages Allegations Duplicate the New York Action, Are Disclaimed by the Parties' Terms, and Are Inconsistent with the "Actual Injury" Framework.

Complainant's amended damages allegations—\$100,000 in alleged "reputational damage" and "lost business," \$55,000 in alleged "cancelled client orders," unidentified invoicing amounts, and "other damages"—largely duplicate the damages at issue in the New York Action and arise from the same cargo-hold and invoicing disputes that are the subject of that action, where Cool Living LLC has appeared and asserted counterclaims. Allowing the same damages to proceed in both forums risks double recovery and inconsistent adjudication. The proper forum to resolve those damages is the New York Action, governed by the parties' contractual terms.

The amendment is also futile as a matter of law. The categories of damages now sought are quintessentially indirect, consequential, and speculative—and the parties' governing terms and conditions expressly disclaim recovery of indirect and consequential damages, which is reflected in Respondents' Sixth and Seventh Affirmative Defenses. The Shipping Act's reparations remedy is, in any event, limited to "actual injury caused by" a violation. 46 U.S.C. § 41305(b). Complainant has not pleaded a clear methodology or factual nexus tying the alleged business losses to a distinct Shipping Act injury. Permitting the amendment to add damages that are both

contractually disclaimed and inconsistent with the Shipping Act's actual-injury framework would serve no purpose, and futility independently warrants denial under Foman.

4. Substituting § 41305(c) "Additional Amounts" Does Not Cure the Knowing-and-Willful Pleading Defect.

Section 41305(c) permits additional amounts only on a showing that the violation was "knowing and willful." The proposed Amended Complaint relies on substantially the same conclusory allegations of knowing and willful conduct that appeared in the original Complaint, while substituting § 41305(c) for § 41107(a). No meaningful additional facts are pleaded to support that remedy. The substitution does not cure the pleading defect; it merely relabels the same theory.

C. Complainant Cannot Demonstrate Diligence.

The original Complaint already disclosed the facts now used to justify amendment. It alleged Cool Living LLC's relationship with Cool Living Oy. Compl. ¶ 8. It alleged ALPI Logistics Inc.'s role, alleged regulated activities, alleged agency relationship, and alleged unlicensed-OTI status. Compl. ¶¶ 12-20. It alleged the disputed invoices and the alleged invoicing of Cool Living Oy. Compl. ¶¶ 24, 46-47. It alleged cargo holds, alleged damages, and the civil-penalties theory. Compl. ¶¶ 57-66, 103, Prayer for Relief ¶ 2. The same is true outside the four corners of the Complaint. The cargo-hold (in both Denmark and New Jersey) and invoicing dispute that underlies this proceeding has been the subject of a parallel proceeding in New York since before this complaint was filed, and Complainant has been an active participant in that proceeding. The notion that the facts now relied upon to justify amendment first emerged after Respondents' January 14, 2026 Answer is not credible. Respondents' Answer did not create new facts. It raised defenses based on facts Complainant had already pleaded or otherwise knew, including standing/real-party-in-interest, contractual limitations, lien rights, prior pending action,

and no knowing or willful violation. Answer ¶¶ 109-128. Complainant cannot transform Respondents' defenses into good cause to rewrite the Complaint months later. The Motion is tactical correction and expansion, not amendment based on newly discovered facts.

D. Granting the Amendment Would Substantially Prejudice Respondents and Disrupt the Scheduling Order.

The amendment imposes concrete prejudice independent of the diligence issue. Respondents would need discovery into the corporate structure and intercompany allocations between Cool Living LLC and Cool Living Oy; Cool Living Oy's United States contacts and its position in the New York Action; the regulated activities, FMC licensure, and inter-entity relationships of non-party ALPI Logistics Inc.; the location, custody, and contractual basis for any New Jersey-held cargo; and the methodology behind the new damages figures. Respondents would also need to develop amended defenses, including privity, real-party-in-interest, estoppel, vicarious-liability scope, warehouse-lien, and segregation of any cognizable "actual injury" from contractual or consequential losses. None of this fits within the existing discovery schedule without modification. Rule 66 expressly conditions any amendment that broadens the issues on an "opportunity to reply to such amended pleading and to prepare for the broadened issues." The current schedule does not provide that opportunity.

E. The Amendment Appears Designed to Create Leverage in the First-Filed New York Action.

This case should be viewed in context. ALPI first filed the New York action to recover unpaid invoices, and Cool Living LLC appeared and asserted counterclaims arising out of the same invoices, the same alleged cargo issues, and the same alleged damages. Cool Living then filed this FMC case and now seeks to expand it by adding Cool Living Oy, adding New Jersey cargo allegations, recasting damages as Shipping Act injury, and changing the remedy theory after Respondents identified the defect in the civil-penalties demand. The proposed amendment would

convert this FMC proceeding into a duplicative forum encompassing the same parties, same subject matter, and same alleged damages already pending in New York under the parties' contractual terms.

If the Motion is not denied, this proceeding should be stayed pending resolution of the first-filed New York Action. Three independent considerations support a stay. *First, judicial economy and avoidance of duplicative litigation.* The two proceedings involve the same commercial relationship, the same cargo-hold and invoicing dispute, the same alleged damages, and overlapping parties. Allowing both to proceed in parallel risks duplicative inconsistent rulings and double recovery, and would force Respondents to defend the same dispute on two fronts. A stay would conserve party and tribunal resources and avoid the substantial expense of litigating the same dispute in two forums simultaneously. *Second, the parties' forum-selection agreement.* The parties' governing terms and conditions designate New York as the agreed-upon forum for disputes arising out of the parties' commercial relationship—the basis for Respondents' Seventeenth Affirmative Defense (Improper Venue). The damages, contractual lien rights, and invoicing disputes that drive both proceedings are precisely the issues the parties agreed to resolve in New York, and the New York Action is already adjudicating them. The Commission should defer to the parties' forum-selection agreement for the contractual and damages issues that overlap. *Third, the first-filed rule and the prior-pending-action doctrine.* The New York Action was filed first, involves substantially the same parties, and addresses substantially the same subject matter—the basis for Respondents' Eighteenth Affirmative Defense (Prior Pending Action). The first-filed rule and the prior-pending-action doctrine routinely support a stay or dismissal of a later-filed proceeding where, as here, the earlier action will resolve overlapping issues. The New York court has already denied Cool Living Oy's motion to dismiss and is positioned to resolve the underlying contractual and damages issues that drive both proceedings; resolving them first will narrow or

eliminate the issues to be decided here, while preserving Complainant's ability to pursue any remaining Shipping Act claim once the New York Action is resolved. If the Commission grants leave to amend in any form and declines to stay this proceeding, Respondents respectfully request that the Scheduling Order be modified to provide Respondents a reasonable opportunity to answer or otherwise respond to the Amended Complaint, to amend their affirmative defenses, and to conduct supplemental discovery on all new factual and legal allegations, with corresponding extensions of the discovery cutoff and remaining case deadlines, as Rule 66 requires when an amendment broadens the issues.

V. CONCLUSION

The proposed amendment restructures this case after Respondents answered, after a scheduling order was entered, and after discovery and mediation—based on facts known to Complainant from the outset, and filed without the conferral Rule 71(a) requires. It broadens the issues under Rule 66, lacks diligence, and creates concrete prejudice. The Motion should be denied or, in the alternative, this proceeding stayed pending resolution of the New York Action; and if the Commission instead grants leave to amend in any form, the Scheduling Order should be modified to afford Respondents a reasonable opportunity to respond to the Amended Complaint, amend their defenses, and conduct supplemental discovery.

Respectfully submitted,

Dated: May 7, 2026

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CERTIFICATE OF SERVICE

I hereby certify that on this 7th day of May, 2026, a true and correct copy of the foregoing Respondents' Opposition to Complainant's Motion to Amend the Complaint was served via electronic mail upon counsel for Complainant—Christopher R. Nolan (chris.nolan@hklaw.com) and Ashleigh T. Higgs (ashleigh.higgs@hklaw.com), Holland & Knight LLP, Counsel for Complainant Cool Living LLC—and upon the Office of the Secretary, Federal Maritime Commission, at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov.

/s/ Daniel E.L. Bang

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